

BEFORE THE FEDERAL MARITIME COMMISSION

EUROMARKET DESIGNS, INC.

Complainant

vs.

MSC MEDITERRANEAN SHIPPING COMPANY SA,
OCEAN NETWORK EXPRESS PTE. LTD.,
EVERGREEN LINE JOINT SERVICE AGREEMENT
(FMC AGREEMENT NO. 011982), EVERGREEN
MARINE CORP. (TAIWAN) LTD., EVERGREEN
MARINE (UK) LIMITED, ITALIA MARITTIMA SpA,
EVERGREEN MARINE (HONG KONG) LTD.,
EVERGREEN MARINE (SINGAPORE) PTE. LTD.,
HMM COMPANY LIMITED, MAERSK A/S, CMA
CGM S.A., APEX MARITIME CO, INC., CHINA
UNITED TRANSPORT, INC., COSCO SHIPPING
LINES CO., LTD., AND WAN HAI LINES LTD,

Respondents

FMC Docket No. 25-03

**STIPULATION OF WITHDRAWAL AND SUBSTITUTION AS COUNSEL
FOR RESPONDENT APEX MARITIME CO., INC**

Pursuant to 46 C.F.R. § 502.23(d) of the Commission's Rules of Practice and Procedure, outgoing counsel Richard L. Beaumont and Jessica Link Martyn, Link Martyn PLLC, for Respondent Apex Maritime Co., Inc ("Apex") ("Outgoing Counsel"), and incoming counsel Rebecca A. Fenneman, Kaya C. Massey, and Nicholas L. Webb, JEFFREY/FENNEMAN LAW + STRATEGY, PLLC for Apex Maritime Co., Inc ("Incoming Counsel"), stipulate to the withdrawal of Richard L. Beaumont and Jessica Link Martyn and the substitution of Rebecca A. Fenneman, Kaya C. Massey, and Nicholas L. Webb, as follows:

BACKGROUND

1. Respondent Apex is currently represented by Outgoing Counsel.

2. The basis of withdrawal is the decision of Respondent Apex Maritime Co., Inc to proceed with Incoming Counsel. The consent form of legal counsel for Respondent Apex Maritime Co., Inc is enclosed with this Stipulation.

3. Incoming Counsel is fully familiar with the lawsuit and its substitution will not require any delay of the proceedings, the key area of inquiry in 46 C.F.R. § 502.23(d).

DATED: February 18, 2025

By: /s Nicholas L. Webb

Rebecca A. Fenneman

Kaya C. Massey

Nicholas L. Webb

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*Incoming Counsel for Apex Maritime Co.,
Inc.*

Respectfully submitted,

By: /s Richard L. Beaumont

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*Outgoing Counsel for Respondent Apex
Maritime Co., Inc.*

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EUROMARKET DESIGNS, INC.

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Respondents

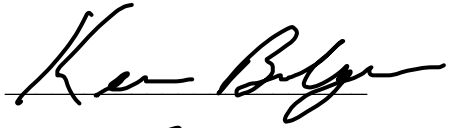
FMC Docket No. 25-03

**CONSENT OF RESPONDENT APEX MARITIME CO., INC. TO
WITHDRAWAL OF RICHARD L. BEAUMONT AND JESSICA LINK
MARTYN AS ITS COUNSEL**

Respondent Apex Marine Co., Inc. consents to the withdrawal of Richard L. Beaumont and Jessica Link Martyn, Link Martyn PLLC, and the substitution of Rebecca A. Fenneman, Kaya C. Massey, and Nicholas L. Webb, Jeffrey/Fenneman Law + Strategy, PLLC as counsel for APEX MARITIME CO., INC. in this matter.

Executed: February 17, 2025

APEX MARINE CO., INC.

By: 

Feb 17, 2025

CERTIFICATE OF SERVICE

I certify that on the 18th day of February, 2025, a true and correct copy of the foregoing **NOTICE OF APPEARANCE** was served by email on all counsel of record in accordance with 46 CFR Part 502 and the Commission's Order of May 12, 2020.

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